



File No.: EXP202405331

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on March 18, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access and Limitation against SAMOYGOM MALACITANA, S.L. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that on January 29, 2024, they suffered a fall in the facilities of an establishment of the respondent and that, on January 31, 2024, they sent a burofax requesting the preservation and access to recordings from the surveillance system of the establishment of the respondent where the events occurred, noting that the burofax was notified on February 1, 2024. Having received no response, on February 20, 2024, the complainant sent an email to the respondent reiterating their request, receiving a response on the same date in which the respondent indicated that the images were retained for a period of six days and that they did not have the images, claiming that the complainant themselves, after the incident, told them not to worry, that they would contact the insurance directly, and therefore they did not retain the images.

The complainant indicates that they requested the preservation of the images and their copy via burofax before the six-day period indicated by the respondent had elapsed, asserting that the images should have been preserved and understanding that there is a violation of data protection regulations in the actions taken by the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on June 18, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any allegations they deemed appropriate within ten working days, summarizing the following allegations:

“A burofax was received on February 1 from a lawyer who claims to be the legal representative of the interested party, requesting the insurer's data and the preservation of the security recordings related to these events. The request to exercise data protection rights by the interested party could not be carried out because at no time did the supposed representative of the affected person credibly prove to have the power of representation of the interested party for the transfer of personal data (images), and in the case that it were verbal mandates, the interested party does not ratify by any means said verbal mandate. In application of Art. 12.2 GDPR, the data controller is not in a position to identify the interested party.

No response was given to the interested party because there are no contact details available; only a response was given to the lawyer who is “supposedly” acting on behalf of the interested party, informing (as noted in the emails submitted by the complainant) of the insurance details and the deletion of the images within 6 days from their capture. The respondent did not consider the request

for the exercise of rights by the interested party.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/9

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by data subjects and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on June 18, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to address any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

C/ Jorge Juan, 6

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right concerns a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be considered granted if the controller provides remote access to the data, with the request being deemed addressed (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party. Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing.

C/ Jorge Juan, 6

that is being made of your data, the possibility of obtaining a copy of the personal data concerning you and that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the origin of the data (if these have not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information on transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

Right to restriction of processing

Article 18 of the GDPR, which regulates the right to restriction of processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller restriction of processing of personal data when one of the following applies:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the deletion of the personal data and requests instead the restriction of their use;
- c) the controller no longer needs the personal data for the purposes of the processing, but the data subject needs them for the formulation, exercise, or defense of legal claims;
- d) the data subject has objected to processing pursuant to Article 21(1), pending verification of whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise, or defense of legal claims, or to protect the rights of another natural or legal person or for important public interest reasons of the Union or of a Member State.

3. Any data subject who has obtained restriction of processing under paragraph 1 shall be informed by the controller before the restriction is lifted."

It should be noted that the right to restriction of processing enables the claimant to have the processing of data restricted when the accuracy of the personal data is contested, for a period allowing the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims, or when the data subject has objected to the processing, while verifying whether the legitimate grounds of the controller override those of the claimant.

VI

Conclusion

We will begin by stating that this claim will only consider whether the requested rights, the right of access and limitation, have been addressed or not. The other issues raised by the claimant and the respondent regarding the matter of compensation for damages caused will not be taken into account in this resolution.

In the case analyzed here, the claimant first expressly requested the preservation of the recording from the security cameras corresponding to the checkout line on January 29, 2024, in case it was necessary to provide it as documentation in the event of being compelled to go to court, with the following chronology:

- On 01/31/24, the claimant requests via burofax to the respondent:
 - o Copy of the report opened regarding the incident.
 - o Identification of the insurance company covering civil liability.
 - o Policy number.
 - o Preservation of the security recordings corresponding to these events.

The burofax was delivered on 02/01/2024 to B.B.B.

- On 02/01/24, the respondent sends an email to the representative of the claimant, simply providing the requested insurance details, but without mentioning the preservation of the requested security recordings.

- On 02/20/24, the claimant sends an email to the respondent, indicating that "regardless of the claim we have already made to your insurer regarding the matter in question, and as we already did via burofax that was notified to you on 02/01/24, we again urge the preservation of the security recordings corresponding to these events (the fall that occurred at the checkout line on 01/29/24), providing a copy of the same to this party."

- On 02/20/24, the respondent sends an email to the claimant, indicating that the recordings made by their recording system are only kept for 6 days. "Therefore, I regret to inform you that there are no recordings of the incident and there is no way to obtain them."

- On 02/20/24, the claimant replies to the respondent's email, indicating that "this party made a request for access to the recordings..."

7/9

of security via burofax that was notified to them on 01/02/2024.

Considering that the accident in question occurred on January 29, the request for the preservation of the images was made by this party within the legal timeframe, even before the 6 days that you apply, therefore you were obliged to preserve said recordings. Regardless of what our client may have told you at the time of the events (which we doubt she said that you should not worry about anything), this party formally requested you on 01/02/24 to preserve the recordings, and yet you proceeded to delete them, directly violating what is stipulated in Article 22.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights and other related regulations.

-

On 20/02/24, the responding party replies to the claimant in these terms:

"Let's see what you have not understood. Our system has the capacity to store images for 6-8 days. Only if the competent authority requires us to do so within that period do we have the duty to keep them. While, as in the case of your client, she indicates that she would handle everything with our insurance, the preservation of the recording fragment of the incident was not carried out. Therefore, however you want to put it, there are no recordings of what happened. I also take this opportunity to tell you that here NOBODY has refused to compensate anyone; we have our insurance that will take care of what it deems appropriate."

The respondent in this case, through its DPO, presents allegations to this Agency on August 8, 2024, in which it claims that it received a burofax on February 1 from a lawyer who claims to be the legal representative of the interested party, requesting the data of the insurer and the preservation of the security recordings corresponding to these events, and that the request for the exercise of data protection rights by the interested party could not be carried out because at no time did the supposed representative of the affected person credibly prove to have the power of representation of the interested party for the transfer of personal data (images), and in the event that it were verbal mandates, the interested party does not ratify by any means said verbal mandate. In application of Article 12.2 of the GDPR, the data controller is not in a position to identify the interested party. However, despite the fact that the responding party had doubts about the representation of the claimant, it responds to the supposed legal representative of the interested party by sending the requested data via email on February 1, 2024, with the exception of a copy of the recordings. It is striking that this party responds to the supposed representative, without knowing whether or not he is truly the legal representative of the claimant; it should be noted that if at any point there was doubt about whether he was acting on behalf of the claimant, he should have requested the legal representation of the lawyer to verify his representation.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/9

According to the responding party, the company must ensure that the images are preserved and delivered only to those who can credibly prove they have the power of representation of the injured party, not to anyone who claims it through a simple burofax. In this case, it is more than proven that the representative acted on behalf of the responding party, as the request for access to the recordings sent by the representative on January 31, 2024, via burofax was signed by both the claimant and their representative.

Consequently, the exercise of rights cannot be considered attended to. Firstly, because the request for preservation was not adequately responded to. Secondly, because the right of access for the claimant was not guaranteed, as the images from the cameras were deleted.

Therefore, the claiming party has infringed the provisions of Article 15 of the GDPR and Article 18 of the RGP, even though they provided a response to the claimant's request 6 months later.

Thus, it cannot be accepted that the response that should be given can be manifested as part of a

mere administrative procedure, such as the submission of allegations in the present procedure, initiated precisely for not adequately addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the responsible parties must issue, even in cases where there are no data in the files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question should not be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR and Article 18 of the GDPR have been infringed and to urge SAMOYGOM MALACITANA, S.L. with NIF B93411882, to send the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request should not be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/9

SECOND: NOTIFY this resolution to A.A.A. and to SAMOYGOM MALACITANA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es